

		Petitioner seeks to obtain cellular phone records for the phone number (949) xxx-8691, the number for Petitioner's insured, Erin Elizabeth McReynolds (Ms. McReynolds) for the time period of August 1, 2025, through September 30, 2025, pursuant to a deposition subpoena issued to Verizon on January 5, 2026. Petitioner contends the records sought are relevant and reasonably necessary to process and investigate the claim submitted by Ms. McReynolds regarding a theft loss occurring on August 31, 2025. Both Ms. McReynolds and Verizon were duly served with a copy of the instant motion, but no oppositions were filed. Moreover, Ms. McReynolds has signed a consent form for the release of the records and thus is agreeable to releasing the records. (Exh. B to Motion.) Ms. McReynolds also does not dispute the records are relevant and reasonably necessary to process and investigate the subject claim. Based on the foregoing, the motion is GRANTED. Verizon is ordered to produce documents responsive to the deposition subpoena within 20 days of service of notice of this order. Petitioner is ordered to submit a proposed order in accordance with this ruling, and to give notice of this ruling.
10.	<i>Claim of Yang</i> <i>2025-01523208</i>	Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture. Petitioner brings this motion under Health and Safety Code section 11488.5 on the ground no one has filed a timely and proper claim to the \$57,810 in United States Currency Petitioner seized on or about November 7, 2024. Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof

	that a criminal conviction be obtained in an underlying or related criminal offense.” “Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health & Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is ‘to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.’ (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)” (<i>People v. Mendocino County Assessor’s Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.) Here, on November 8, 2024, real party in interest Yuzhu Yang (Yang) was personally served with a “Receipt for Seizure and Personal Notice of Intended Forfeiture” regarding the \$57,810 in currency at issue. On November 17, 2025, Yang was personally served with the petition initiating these forfeiture proceedings. Yang is the only individual whose name appears on a receipt for the seized property, and therefore is the only individual entitled to notice under the first or second types of service described in the preceding paragraph. As stated above, Petitioner has shown Yang was personally served with the receipt as well as the petition initiating these proceedings. Petitioner was also served by mail with this motion and the supplement declaration in support of the motion. The motion also established Petitioner published notice of these proceedings for three consecutive weeks in the Orange County Reporter, thereby satisfying the requirements of Health and Safety Code section 11488.4, subdivision (e). No timely and proper claim has been filed by any party asserting any interest in the seized property. Accordingly, pursuant to Health and Safety Code section 11488.5, subdivision (b)(1), Petitioner is entitled to a declaration the property is forfeited upon Petitioner making a prima facie showing of its right to the forfeiture. There is no requirement that a criminal conviction be obtained in an underlying or related criminal offense.
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		Based on the uncontroverted declarations of Officer N. Castro (#641) and Sergeant K. Kestly (#523), the court finds Petitioner has established a prima facie case in support of its petition for forfeiture, and therefore Petitioner is entitled to a default judgment of forfeiture. Based on the foregoing, the motion is GRANTED. Petitioner's counsel is ordered to give notice of this ruling.
11.	<i>Claim of Zavala and Medina</i> <i>2025-01532561</i>	Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture. As more fully set forth below, the motion is CONTINUED TO THURSDAY, JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23. Petitioner brings this motion under Health and Safety Code section 11488.5 on the ground no one has filed a timely and proper claim to the \$75,953.87 in United States Currency Petitioner seized on or about January 9, 2025. Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." "Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health & Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.' (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three